

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407151	HENDERSON VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL

Tentative Ruling:

Moving party: Defendant American Honda Motor Co., Inc.
Responding party: Plaintiff Amber Henderson

Plaintiff Amber Henderson brings this Song-Beverly action regarding a 2024 Honda Accord Hybrid (the “Vehicle”) that developed defects and nonconformities during the applicable warranty period. On December 31, 2024, Plaintiff filed this lawsuit against Defendant American Honda Motor Co., Inc. (or “Honda”) for 3 causes of action:

- (1) Violation of Song-Beverly Act – Breach of Express Warranty
- (2) Violation of Song-Beverly Act – Breach of Implied Warranty
- (3) Violation of the Song-Beverly Act section 1793.2(b)

Honda now moves to compel a vehicle inspection. On April 30, 2026, Honda served a Notice of Vehicle Inspection (the “Notice”) for inspection on June 15, 2026. (Williams Decl., ¶8, Exh. F.) Six days prior to the inspection date, Plaintiff emailed Honda claiming unavailability on June 15, 2026. (*Id.* at ¶9, Exh. G.) On June 10, 2026, Plaintiff served an untimely objection stating she would not produce the vehicle on the noticed date. (*Id.* at ¶10, Exh. H.) After the Court’s denial of Honda’s ex parte application, on June 12, 2026, Honda accepted Plaintiff’s June 23, 2026 date for inspection. (*Id.* at ¶¶11, 13, Exhs. I, J.) The next day, Plaintiff informed Honda June 23, 2026 was no longer available for inspection. (*Id.* at ¶14, Exh. K.) Honda asserts good cause exists given Plaintiff placed the Vehicle’s condition at issue. Plaintiff waived any objection to Honda’s demand for inspection by failing to timely object.

In opposition, Plaintiff claims Defendant failed to meet and confer in good faith. As to the June 23, 2026 date, Plaintiff asserts she offered that date after objecting to the unilateral date noticed by Defendant, but by the time Defendant was willing to accept June 23, 2026, it was no longer available. Defendant’s motion was filed six days after the discovery cut-off date based on the July 20, 2026 trial date. Plaintiff contends Defendant failed to establish good cause.

In reply, Honda generally repeats its arguments. As to the discovery cut off argument, Honda maintains this does not defeat the motion because Code of Civil Procedure section 2031.010 expressly authorizes a party to demand inspection of tangible things, e.g. the Vehicle. Plaintiff’s untimely objection to the Notice is a waiver to the objection to the inspection demand. The waiver includes the objection Plaintiff now raises in opposition, specifically that the inspection was noticed for a date after the discovery cutoff.

Trial is currently set for July 10, 2026.

Analysis

I. Meet and Confer

A motion to compel further response to a request for production “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).) A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.)

Based on a review of the correspondence between the parties, including after the ex parte application hearing on June 17, 2026, further meet and confer efforts will not aid in resolution of the parties’ dispute.

II. Standard

A party may file a motion compelling further responses to an inspection demand if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310.) Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at subd. (c).) Failure to comply with the discovery deadline “is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

III. Merits

a. Timeliness of Motion/Discovery Cut-Off

Generally, a party is entitled to complete non-expert discovery on or before the 30th day, and motions concerning that discovery are heard on or before the 15th day, before the initial date set for trial. (Code Civ. Proc., § 2024.020, subd. (a).) Similarly, expert discovery is to be completed on or before the 15th day, and motions concerning expert discovery are to be completed on or before the 15th day, and motions concerning expert discovery are to be heard on or before the 10th day before the initial trial date. (Code Civ. Proc., § 2024.020, subd. (b).)

The parties do not dispute that the discovery cut-off dates and deadlines are based on the July 10, 2026 jury trial date. (Code Civ. Proc., § 2024.020, subd. (a).) Thus the discovery cut off in the present case is June 10, 2026, and the motion must be heard by Thursday June 25, 2026. “[A] continuance or postponement of the trial date **does not operate to reopen discovery proceedings**.” (Code Civ. Proc., § 2024.020, subd. (b).) Accordingly, Defendant’s motion is **UNTIMELY**.

Nevertheless, under section 2024.050, subdivision (a), a party may seek leave of court to reopen discovery after a new trial date has been set. The granting or denial of a motion to reopen is at the Court's discretion. (Code Civ. Proc., § 2024.050, subd. (b).)

In the published portion of *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1571, the court concluded the trial court "botched its responsibilities under the Civil Discovery Act and prejudicially abused its discretion in granting [plaintiff's] motion to compel after the discovery motion cutoff date when [plaintiff] had not moved to reopen discovery under Code of Civil Procedure section 2024.050." The Court further held that a trial court's discretion to hear a discovery motion after the discovery motion cutoff date "is governed by section 2024.050, which requires the court to consider various factors in determining whether to hear a discovery motion after the cutoff date. Because the trial court [] did not require [plaintiff] to file a motion to reopen discovery under section 2024.050 before, or simultaneously with, filing its motion to compel, there is no indication in the record that the court considered any of the relevant factors." (*Ibid.*)

Given it is past the discovery cutoff date and there is no motion pending to reopen discovery, it would be an abuse of discretion for the Court to consider Honda's motion. The motion, therefore, is **DENIED** as untimely.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506404	WARREN VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION TO COMPEL FURTHER DISCOVERY

Tentative Ruling:

Moving party: Plf, Kesha Warren
Represented by: Quill & Arrow, LLP

Responding party: Def, Volkswagen Group of America, Inc. (VW)
Represented by: Squire Patton Boggs (US), LLP

Plaintiff, Kesha Warren, alleges that on 11/18/24 she leased a 2024 Audi Q8, which was accompanied by an express warranty issued by Defendant, Volkswagen Group of America, Inc. (VW). She alleges the vehicle was delivered to her with serious defects and nonconformities to warranty as to the electrical and structural systems that impair the use, value, and/or safety of the vehicle. Plaintiff presented the vehicle to an authorized repair facility but, they were unable to conform the vehicle to warranty after a reasonable number of repair attempts. Plaintiff filed her Complaint on 11/5/25 alleging three causes of action for violations of the Song Beverly Consumer Warranty Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and, 3) violation of Civil Code § 1793.2(b).